

In T. 432/88 the appeal filed only made a general reference to the appellant's submissions in the preceding opposition proceedings and thus amounted to no more than a mere assertion that the contested decision was incorrect, without stating the legal or factual reasons why that decision should be set aside. Consequently, the appellant had left it entirely to the board and the respondent to conjecture in what respect the appellant might consider the decision under appeal to be defective. This was followed in T. 534/89, where the board pointed out that otherwise the respondent is at a loss to know how to prepare his case and the board cannot direct the appeal proceedings in an efficient way.

Merely referring to one's own first-instance submissions could not normally replace an explicit account of the legal and factual reasons for the appeal. Only exceptionally did the case law allow substantiation to take that form. References to earlier submissions, even when taken together with the contested decision, did not as a rule clearly indicate which grounds of the decision were regarded as mistaken, and why. The board and the opposing party could not then consider the merits of the appeal without making investigations of their own (T. 349/00). See also T. 165/00. According to the case law of the Boards of Appeal, the grounds of appeal should state the legal and factual reasons why the appeal should be allowed and the contested decision set aside. It is not enough merely to seek fresh examination of the patentability requirement found not to be met at the previous instance by indicating disagreement with that finding (see T. 220/83, OJ 1986, 249; T. 213/85, OJ 1987, 482; T. 145/88, OJ 1991, 251; T. 1462/08; T. 2077/11).

In T. 2556/16 the board stated that merely referring to one's own submissions in the first instance proceedings could not normally replace an explicit account of the legal and factual reasons for the appeal (see T. 2012/16). This applied even more, when the absence of evidence for an alleged common general knowledge was one of the decisive reasons in the first instance decision for rejecting the opposition. The appeal had to be found inadmissible.

In a small number of isolated decisions, however, the boards have accepted a general reference to submissions at first instance as potentially constituting grounds for an admissible appeal (T. 355/86, T. 140/88, T. 725/89, T. 869/91, T. 216/10), but these decisions were given in special cases in which those submissions already adequately addressed the grounds underlying the contested decision.

#### 2.6.6 Arguments need not be new or relevant

Whether the appellant's arguments are convincing or likely to be successful is irrelevant for the purposes of determining the admissibility of the appeal (T. 1668/14). See also T. 1610/15.

In T. 644/97 the board found that the fact that the points made in the statement of grounds of appeal did not go beyond those made before the opposition division did not detract from the admissibility of an appeal. A requirement that new arguments be submitted to render an appeal admissible would have implied that the appealed decision must have been correct. Nor did the appeal need to have a strong prospect of success.

The fact that some arguments were already presented during the opposition proceedings was not detrimental to the admissibility of the appeal (T 1074/12).

Irrelevancy and lack of cogency might lead to an unsuccessful outcome of the appeal, but did not of themselves render it inadmissible (T 65/96, see also T 922/05).

#### 2.6.7 Exceptional circumstances warranting admissibility of appeal

##### a) Immediately apparent the contested decision cannot be supported

In J 22/86 (OJ 1987, 280) the board made it clear that where the written statement did not contain such full reasons, the requirement for admissibility might be regarded as satisfied if it was immediately apparent upon reading the decision under appeal and the written statement that the decision should be set aside. According to the board, a well-drafted statement of grounds should contain reasoning that is full but concise. And, in general, it is obvious that the less reasoning that a statement contains, the greater will be the risk that the appeal will be rejected as inadmissible for non-compliance with Art. 108 EPC. The question whether a particular statement alleged to be a statement of grounds of appeal in a particular case meets the minimum requirement of Art. 108 EPC could only be decided in the context of that particular case; and the context of a particular case will normally include the contents of the decision under appeal. In a wholly exceptional case such as the one before the board, it might be immediately apparent to the board upon reading the decision under appeal and the statement of grounds that such decision cannot properly be supported, even though the grounds contained in such statement can fairly be described as minimal. See also J 2/87 (OJ 1988, 330), J 6/88, T 195/90, T 729/90 and J 1/14.

##### b) Patent proprietor requests revocation

An opponent's appeal is admissible when the written statement of grounds is based solely on the fact that the patent proprietor himself filed the request for revocation of the patent after the appeal was filed (T 459/88, OJ 1990, 425 and T 961/93).

##### c) Substantial procedural violation

In T 1020/13 the board held that, if a substantial procedural violation is alleged and adequately substantiated in the statement of grounds of appeal, it is irrelevant for the decision on admissibility of the appeal whether the challenge to the substantive reasons for the decision can likewise be regarded as adequately substantiated.

#### 2.6.8 No partial admissibility of appeal

The admissibility of an appeal can only be assessed as a whole (T 382/96, T 1763/06, T 509/07, T 2001/14). There is no support in the EPC for a notion of 'partial admissibility' of an appeal (T 774/97, T 509/07, T 2339/12, T 1311/13, T 1679/17).

The board in T.509/07 thus found it immaterial for the purposes of the admissibility of the appeal whether or not sufficient grounds relating to the main request had been submitted, where the first auxiliary request clearly complied with the admissibility requirements of Art. 108, third sentence, EPC. However, it is a different question whether a request in relation to which the admissibility requirements of Art. 108, third sentence, EPC are not met is admitted into the appeal proceedings. In T.382/96 and T.509/07, such unsubstantiated requests were not admitted. See also T.1763/06 and T.2001/14.

In T.1679/17, the board stated that so long as one objection to the contested decision had been raised in compliance with R. 99(2) EPC, the entire appeal was admissible. Even if other objections were not adequately substantiated as per Art. 12(2) RPBA 2020, this did not entail any partial inadmissibility that could no longer be remedied by a later submission. Rather, it merely meant that the admission of those objections (assuming they were not substantiated until later in the proceedings) would be at the board's discretion under whichever provision was applicable at the time of their belated substantiation (Art. 13(1) or 13(2) RPBA 2020).

## **2.7. Examination of the admissibility of appeal in every phase of appeal proceedings**

It is established jurisprudence of the boards of appeal that the admissibility of the appeal is to be examined ex officio at every stage of the appeal proceedings (see T.15/01, OJ 2006, 153), and thus also at the oral proceedings (T.501/09, T.2223/10, T.198/15). It can and, where appropriate, must be raised by the board in appeal proceedings even if this is the first time this matter is addressed (T.289/91, OJ 1994, 649; T.28/93; T.522/94, OJ 1998, 421; T.1668/07).

In T.670/09, the respondent did not challenge the appeal's admissibility until two days before the oral proceedings. The board observed that, under Art. 12(2) RPBA 2007, the reply to an appeal had to contain the respondent's entire case. As a rule, respondents had to object to the appeal's admissibility or the board's competence in limine litis, i.e. before submitting their substantive defence. The respondent's objection to admissibility was therefore disregarded.

## **2.8. Cases where admissibility of appeal need not be considered**

In appeal proceedings in which the question of allowability of an appeal can be readily decided (i.e. the appeal is clearly unallowable) but no decision on its admissibility can be taken yet, the issue of admissibility of the appeal can be left open (T.1467/11). Similarly, in a number of decision on petitions for review under Art. 112a EPC, the Enlarged Board of Appeal did not arrive at a final conclusion as to whether the petition in question was clearly inadmissible, because it found the petition to be clearly unallowable (T.2023/09).

## 2.9. Interlocutory revision

### 2.9.1 General

Under Art. 109(1) EPC, in **ex-parte** proceedings the department whose decision is contested must rectify its decision if it considers the appeal to be admissible and well founded. This is for reasons of procedural economy. Interlocutory revision is generally not available for decisions in **inter partes** proceedings, as the appellant should not be opposed by any other party to the proceedings. In exceptional cases, however, an opposition division may correct its decision by way of interlocutory revision if it wrongly revoked a patent for failure to comply with certain requirements despite intending to maintain that patent in amended form pursuant to a final interlocutory decision (see T 168/03).

On expiry of the three-month period under Art. 109(2) EPC 1973, the department of first instance whose decision is contested ceases to be responsible for the matter. Rectification of the decision is then no longer possible (T 778/06).

Art. 109(1) EPC provides an exception to the principle of general devolutive effect of the appeal, in order to allow an interlocutory revision. This exception has to be construed narrowly in connection with the interlocutory revision, and not as a broader entitlement for the department of first instance to decide whether an appeal is admissible (T 1973/09) (see also T 473/91, OJ 1993, 630, T 808/03 of 12 February 2004).

In G 3/03 (OJ 2005, 344), the Enlarged Board of Appeal held that the object and purpose of interlocutory revision under Art. 109(1) EPC was to avoid, in the interest of procedural economy, any need to remit clear and straightforward cases to the boards of appeal, it being preferable for the department of first instance whose decision was contested to rectify the decision if it was immediately apparent to that department that its decision could not stand. As to reimbursement of the appeal fee in the event of an interlocutory revision, see chapter V.A.11.4.

In T 1558/18, the two oppositions against the patent had been withdrawn and so the appellant had not been opposed by any other party to the proceedings within the meaning of Art. 109(1) EPC. The appeal being admissible and also well founded with regard to a substantial procedural violation, the opposition division should have rectified its decision itself under Art. 109(1) EPC but had instead remitted the appeal straight to the board. In doing so, it had committed a further substantial procedural violation in relation to the appellant's right to be heard.

In T 638/01 a form was wrongly filled in and the appeal was sent by the formalities officer acting for the opposition division directly to the boards of appeal, bypassing the consideration for interlocutory revision. The board pointed out that since the granting of interlocutory revision in an appropriate case is **mandatory**, it followed a fortiori that considering a case for interlocutory revision in circumstances where the latter is possible is itself a **mandatory procedural step**. Since, however, the legislative purpose of

Art. 109 EPC is overall procedural economy, it made no sense for the board to remit the case to the department of first instance for performance of this omitted step.

### 2.9.2 The department of first instance's obligation to rectify the decision

In case T 139/87 (OJ 1990, 68) the board of appeal made it clear that an appeal by an applicant for a patent was to be considered well founded within the meaning of Art. 109(1) EPC 1973 if the main request of the appeal included amendments which clearly met the objections on which the refusal of the application had been based as indicated by the examining division. In such a case, the department that issued the contested decision **must** rectify the decision. Irregularities other than those that gave rise to the contested decision do not preclude rectification of the decision (see also T 47/90, OJ 1991, 486; T 690/90; T 1042/92; T 1097/92; T 219/93; T 647/93; OJ 1995, 132; T 648/94; T 180/95; T 794/95; T 1120/11; T 410/14 and T 2303/16).

Similarly, according to T 1060/13 it is established case law of the boards of appeal that, in the event that the appeal is objectively to be considered as admissible and well founded, the department of first instance is obliged to grant interlocutory revision (T 139/87, OJ 1990, 68; T 180/95; T 2528/12; T 1362/13); there is no room for discretion in the interests of procedural efficiency (G 3/03, OJ 2005, 344; J 32/95, OJ 1999, 713; T 919/95).

In T 2445/11 the board was aware that its interpretation of Art. 109(1) EPC was not fully in line with the views expressed in T 1060/13, even though the outcome was the same. According to T 1060/13, interlocutory revision must be allowed if the main request filed with the statement of grounds of appeal clearly overcomes the grounds for refusal, it being irrelevant whether amended claims give rise to new objections or suffer from deficiencies that are themselves the subject of observations included by way of obiter dicta. In the board's view in T 2445/11, this approach may sometimes be too rigid, as it leaves no room for a pragmatic assessment of the situation with a view to procedural efficiency and may result in a needless repetition of the first-instance proceedings, forcing the applicant to pay a second appeal fee.

In T 508/13 the board stated that the expression "considers the appeal to be ... well founded" in Art. 109(1) EPC leaves an examining division room for exercising judgment while bearing in mind that the purpose of interlocutory revision is to speed up the procedure (see T 2445/11). At the same time, once an examining division has decided not to rectify a refusal decision, the possible incorrectness or inappropriateness of not rectifying it is in itself insufficient reason for an immediate remittal of the case: the opportunity to cut short the appeal procedure by means of interlocutory revision has in any event passed. Rather, it has to be assessed whether an immediate remittal is appropriate in view of the overall state of the case.

### 2.9.3 Well-founded appeal within the meaning of Art. 109(1) EPC

An appeal is to be considered "well founded" if at least the main request submitted with the appeal includes amendments which clearly meet the objections on which the decision